

Nepal Ships (Certificates and Logbooks) Act, 1970

Document type: act
Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs
Chunks merged: 7

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Nepal Shipping (Certificates and Log Books) Act, 2027

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Seal and Publication Date
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2027.12.30

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Amending Acts

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1. Judicial Administration Reform Act, 2031 2031.4.18
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2. Judicial Administration Reform (Fourth Amendment) Act, 2043 2043.7.24
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3. Judicial Administration Act, 2048 2048.2.16

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Ratification and Publication Date

- ?. ????????? ?????????? ??? ????? ?????? ?????? ?????? ?????? ??, ????? ????? ? ?? ? ??
4. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.07
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5. Some Nepal Laws Amendment Act, 2072 2072.6.14
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6. Some Nepal Acts Amendment Act, 2072 2072.11.13

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Act No. 16 of the year 2027

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Republic Strengthening and Some Nepal Laws Amendment Act, 2066

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An Act made to make provision relating to certificates and log books of Nepali ships navigating the sea
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Act

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Preamble: Whereas it is expedient to make provision relating to certificates and log books of Nepali ships navigating the sea,

His Majesty King Mahendra Bir Bikram Shah Deva has enacted this Act with the advice and consent of the National Panchayat.

Chapter-1

Preliminary

1. Short title, extent and commencement: (1) This Act may be cited as the "Nepali Shipping (Certificates and Log Books) Act, 2027".

(2) This Act shall extend to the whole of Nepal Repealed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. and shall also apply to ships registered and required to be registered under the Ship Registration Act, 2027, wherever they may be, and to the owners, seamen and employees of such ships.

(3) This Act shall come into force immediately.

2. Definition: Unless the subject or context otherwise requires, in this Act,-

(a) "Nepal Shipping Office" means the Nepal Shipping Office established under the Ship Registration Act, 2027.

(b) "Ship" means a sea-going vessel of at least 10 gross register tons burden capacity.

(c) "Passenger ship" means a ship authorized to carry more than 12 passengers.

(d) "Cargo ship" means all ships other than a passenger ship.

(e) "Tanker" means a cargo ship constructed or adapted for the carriage of liquid cargoes in bulk.

(f) "Prescribed" or "as prescribed" means prescribed or as prescribed by rules made under this Act.

Safety Certificate: After the seaworthiness of any Nepali ship is certified by a recognized classification society authorized by the Government of Nepal in accordance with the provisions of the International Convention for

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Office upon payment of the prescribed fee.

7. Deratting Certificate: (1) A ship infested with rats shall obtain a deratting certificate as prescribed as proof that deratting has been satisfactorily carried out.

(2) If a ship is not infested with rats, or is not suspected of being infested with rats, or is permanently kept in a situation where the number of rats is negligible, it shall also obtain a certificate that such ship is not infested with rats and a certificate that such ship is exempted from deratting for a specified period.

(3) A deratting certificate or a deratting exemption certificate provided by the health officer of any port where a Nepali ship calls shall be valid.

10.

Validity of Certificates: (1) The validity of certificates under clauses (1), (2) and (3) of section 7 shall be 1 year, and such validity may be extended for a maximum of 120 days.

Provided that, in the case of the Seaworthiness (Sea Ordiness) Certificate, such validity may be extended for a maximum of 150 days.

(2) If any ship is damaged and its seaworthiness is adversely affected, all certificates obtained under section 7 for such ship shall be invalid.

(3) The International Load Line Certificate shall become invalid after the expiry of the validity period specified in such certificate.

Provided that such validity period shall not be specified for a period exceeding 5 years from the date of issue.

(4) An exemption certificate shall not be valid beyond the period for which it is issued.

11. Ship's Log Book: (1) A Nepali ship of 50 tons gross tonnage or more navigating the sea, and a Nepali ship of any tonnage having motive power exceeding 150 horsepower, shall keep a ship's log book as prescribed.

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 book shall be signed by the master (chief officer) of the ship and shall be produced whenever required for
 inspection by the health officer of any port where the ship calls or by Repealed by the Some Nepal Laws
 Amendment Act, 2072. Nepali diplomatic or commercial representative.

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